

25STCV18346 25STCV18346

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV18346 Hearing Date: June 30, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV18346

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M CHIMAYAN, et al. vs NISSAN NORTH AMERICA, INC.

June

30, 2026

8:30

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NATURE OF PROCEEDINGS:

PLAINTIFFS' MOTION TO COMPEL INITIAL DISCLOSURES AND REQUEST FOR MONETARY
SANCTIONS PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26.

RULING:

The Court denies the Motion.

I.

BACKGROUND

On June 24, 2025, MHER M

CHIMAYAN AND CLARA CHIMAYAN (Plaintiffs) filed a Lemon Law Complaint against NISSAN NORTH AMERICA, INC. (Defendant), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a Fifth Cause of Action for Fraudulent Inducement - Concealment.

Plaintiff alleges

purchasing, with warranty provisions, a 2023 Nissan Rogue that Defendant manufactured, which had defects, including AEB, transmission, engine, and electrical. Plaintiff further alleges that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On April 23, 2026, Plaintiffs

filed the Motion to Compel Initial Disclosures pursuant to CCP § 871.26.

The Opposition contains

explanations about the disclosures now having been served, and delay during informal settlement efforts.

II.

LEGAL STANDARD

Code of Civil Procedure

section 871.26 provides that, unless the party failing to comply with discovery requirements shows good cause, judges shall impose sanctions, including \$1,500.00 against a plaintiff's attorney, or \$2,500.00 against a defendant's attorney, to be paid within 15 business days, for the failure to comply with initial document production. (Code Civ. Proc., § 871.26, subd. (j)). (Underscoring added.)

III.

ANALYSIS

Plaintiffs maintain that Defendant should be compelled to serve responses and to pay sanctions, due to failure to comply with Code of Civil Procedure section 871.26 having initial disclosure requirements, after the 60-day deadline for initial disclosures expired on December 19, 2025.

The Opposition makes points including the following:

On April 23, 2026, Plaintiffs filed their Motion, purportedly seeking compliance with AB

1755.

But the Motion and the relief requested therein go far beyond the requirements of AB 1755. (Sweeney Decl. ¶ 9.)

Following receipt of Plaintiffs' Motion, Nissan prepared and promptly served its initial

disclosures

and document production under AB 1755 on May 20, 2026. (Sweeney Decl. ¶ 10.) A true and correct copy of Nissan's service form for its disclosures and document production is attached hereto as Exhibit A. (Sweeney Decl. ¶ 11.) For the Court's convenience, a true and accurate copy of Nissan's DBS-related document production is attached hereto as Exhibit B. (Sweeney Decl. ¶ 12.) This document production was served at the same time as the AB 1755 disclosures. (Id.)

Nissan

is now in full compliance with its disclosure obligations under AB 1755. (Sweeney Decl. ¶ 13.)

(Opposition, 2:24–3:8.)

Where respondents served

untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion as to ruling, including: 1) denying the motion as moot, in whole or part, where valid responses without objections have resolved the motion; 2) awarding requested sanctions; 3) allowing moving party to take the motion off calendar; 4) considering the motion as voluntarily

narrowed in scope; 5) compelling responses without objection, where no legally valid responses have been provided, as to some, or all, interrogatories; 6) treating the motion as one to compel further responses, and ruling accordingly, with, or without, a separate statement; 7) ordering the parties to meet and confer; 8) ordering moving party to file a separate statement; or, 9) ordering the motion off calendar while requiring the propounding party to file a motion to compel further responses. (Sinaiko Healthcare Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778 [addressing motion to deem admissions admitted].)

First, the Court exercises discretion to order the matter off calendar, considering the disclosures and production occurring after the Motion's filing.

And the Court finds that the Opposing Declaration shows good cause for failing to comply timely with the discovery requirements of section 871.26, based upon delaying for mutual and informal settlement efforts. So, the Court does not impose sanctions.

IV.

CONCLUSION

The Court denies the Motion, for reasons set forth above.